

JOHNSON v CITY OF ANGELS CAMP, et al

24CV47321

PLAINTIFF'S MOTION FOR ENLARGEMENT OF TIME

Plaintiff filed his Second Amended Motion For Order Substituting Successor-In-Interest to be heard on October 6, 2023. At the hearing on the motion for substitution, the Court also expedited the hearing on defendant's counsel 's motion to be relieved as counsel (originally set for November 17, 2023) and granted the motion. The executor of defendant's estate now seeks to set aside the Court's Order relieving counsel from representation of defendant

Initially, the Court notes moving party failed to include the mandatory notice language of Local Rule 3.3.7 (adopted 1/1/18) which provides:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. Failure to include this language in the notice may be a basis for the Court to deny the motion.

Additionally, the Court notes that plaintiff filed the motion after the Court had already issued its ruling on the demurrers and motions to strike, providing a further basis for denial as the motion was moot at the time of filing.

Based on the foregoing, Plaintiff's Motion for Enlargement of Time is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

TRIPLETT v LAGUNA GOLD MORTGAGE, INC., et al

23CV47133

**DEFENDANT TULARE INDUSTRIAL'S MOTION FOR TRANSFER OF VENUE,
PAYMENT OF COSTS AND FEES**

On December 27, 2023, James Triplett ("Plaintiff") filed his complaint for conversion, breach of contract, and negligence against multiple defendants including Tulare Industrial Center, Inc. ("TCI"). Now before the Court is TCI's motion to transfer venue.

I. Background and Procedural History

On or around May 4, 2021, Plaintiff entered into a contract ("Agreement") to purchase an unbuilt steel building ("Product") from Laguna Gold Mortgage, Inc. ("LGM"). Pursuant to the Agreement, Product was to be delivered by LGM to the jobsite located at 124 Pine St. in West Point, California 95255, Calaveras County ("Jobsite"). Plaintiff paid a total of \$49,000 to LGM for the Product. (Complaint, Ex. A.)

LGM purchased Product from Bluescope. According to Plaintiff, LGM and/or Bluescope then hired defendant Feijo Trucking to transport Product. LGM, Bluescope and/or Feijo Trucking then hired TCI to store Product while it was in transit. TCI was supposed to safely store Product while it was physically located in TCI's yard in Tulare County ("Yard"). There is no allegation that there was ever a contract between TCI and Plaintiff.

Plaintiff was supposed to receive Product at the jobsite on approximately November 30, 2021, but it was never delivered. On May 1, 2023, Plaintiff was informed by an investigator for Great Western Casualty, that Product had been stolen from Yard. Product had been specifically targeted, because a different item was stolen first, then returned and then Product was stolen. Plaintiff alleges that TCI did not take steps necessary to secure the Yard where Product was stored after the first theft occurred.

On March 1, 2024, the clerk entered default against TIC. On November 8, 2024, the Court granted TCI's motion to set aside default and ordered that TCI respond to the Complaint within fourteen days. TCI filed the instant motion to transfer venue on November 21, 2024.